

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

13 CV 4184

Michael Robinson, 241-12-07969

G.M.D.C. (C-73) 15-15 Hazen Street
East Elmhurst, New York. 11370

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

Police Officer John Doe, in his official and individual capacity,

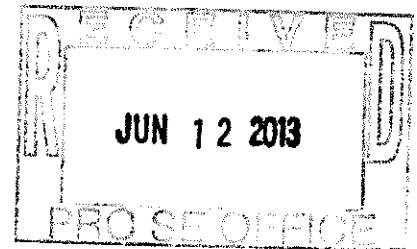
Police Officer John Doe, in his official and individual capacity. Employees and agents of New York City Police Department located at 44th Precinct. One Police Plaza. New York, N.Y. 10013

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

COMPLAINT

under the
Civil Rights Act, 42 U.S.C. § 1983
(Prisoner Complaint)

Jury Trial: ☒ Yes ☐ No
(check one)



I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name Michael Robinson
ID # 241-12-07969
Current Institution G.M.D.C. (C-73) 15-15 Hazen Street
Address East Elmhurst, New York. 11370

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name Police Officer John Doe Shield # _____
Where Currently Employed 44 Precinct. One Police plaza
Address New York. N.Y. 10013

Defendant No. 2 Name Police Officer John Doe Shield # _____
Where Currently Employed 44th. Precinct. one Police
Address Plaza. New York, N.Y. 10013

Defendant No. 3 Name _____ Shield # _____
Where Currently Employed _____
Address _____

Defendant No. 4 Name _____ Shield # _____
Where Currently Employed _____
Address _____

Defendant No. 5 Name _____ Shield # _____
Where Currently Employed _____
Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?
See Attached Brief Statement of Facts, as Follows

B. Where in the institution did the events giving rise to your claim(s) occur?
169 Street. college Ave. Bronx, New York. 10456

C. What date and approximate time did the events giving rise to your claim(s) occur?
July 30, 2010, at approximately 3:10 P.M.

D. Facts: See Attached Brief Statement of Facts to this complaint
as follows;

What
happened
to you?

Who did
what?

Was
anyone
else
involved?

Who else
saw what
happened?

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received. Plaintiff's suffered with extreme emotional multiple type trauma and traumatized distress order by the hands of employee and agents and as well as for police Officers of the City of New York Police Department. One Police Plaza, New York, N.Y. 10003, and the Bronx County District Attorney Office Mr. Robert T. Johnson, and his agents A.D.A. Located at 198 East 161 Street Bronx, New York. 10451.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ____ No X

dated: June 5, 2013

Michael Robinson, 241-12-07969
G.M.D.C. (C-73) 15-15 Hazen St.
East Elmhurst, New York. 11370

Brief Statement of Facts

1). On or about July 30, 2010, at approximately 3:10 P.M. located at 169 College Ave. Bronx, New York. 10456. the Plaintiff Michael Robin, was arrested and charged with the crime of Criminal sale of Controlled substance in the Third Degree, Penal law Section 220.39, and as well as other relayed offenses of the penal Law.

2). The plaintiff's was on the corner of East 169th. Street. college Ave. bronx, New york. 10456, with a friend, when the Narcotic Officer's, and agents approached Plaintiff's for no apparent reason and mistaken identify and illegal arrest and detention. Force imprisonment, by employees, agents and Police Officer's from the 44th. Precinct. Bronx County New York. 10456. One Police Plaza. New York, N.Y. 10013.

3). Plaintiff's was arraigned and charged with Criminal Sale of Controlled Substance in the Third Degree. penal Law Section 220.39, and as well as for other relayed offenses of the Penal Law.

4). Police Officer's John Doe's in his or her official and individual capacity, employees and agents of the City of New York Police Department. located at the 44th. Precinct. Bronx County, New York. 10456, One Police Plaza. New York, N.Y. 10013.

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4). The Plaintiff's was not doing anything illegal that would warrant his illegal detention and arrest. when plaintiff's and his friend were chilling on the corner of 169th. street. College Ave. Bronx County New York, 10456, When the Narcotic officer's came and put us under arrest and said that my friend and I, made a sale, then officer's said my friend gave me money, we were hand cuffs, and taken to the 44th. Precient. Station House in the Bronx County, New York. 10456.

5). On my arraigned date on July 31, 2010, Plaintiff's was remanded on August 5, 2010, Plaintiff's returned and the case was dismissed on December 2, 2010, in favor of the accused and sealed under Section 160.50 of Criminal Procedure Law. Docket NO#. 2010BX048036.

6). At the time of the Plaintiff's illegal arrest and detention, the Plaintiff's was not doing anything illegal that would warrant his illegal detention without probable cause and his arrest was for the purpose of a bogus charges of alleged Drug Sale.

7). The Plaintiff's lost his Job and suffed with extreme emotional pain Due to his illegal arrest and detention and force imprisonment by hands of the Employees of the City of New York Police Department, who had filed bogus charges and only to haress the plaintiff's, into to violated the plaintiff's United States Constitutional Rights, and deprived, and caused deliiberate indiffence of the Plaintiff's free liberty and acted under "color of law", Cruel and Unusual Punishment, and also violation of the Plaintiff's 4th, 5th, 6th. And 14th. Amendment U.S. Const.

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8). The Plaintiff's still suffering with extreme emotionally and with multiple type truma and is still trumatized with disstruss disorder by the hands of the defendant's, agents and Employees and Police Officers of the City of New York Police Department, at the 44th Precient. Bronx County, One Police Plaza. New York, N.Y. 10013.

9). The Plaintiff Michael Robinson, will Sue the defendant's, agents employees and Police Officers, in the amount of Two Million Dollars, compensatory Damage to compensate the Plaintiff's for suffering from mental anguish, and the Plaintiff's will also Sue the defendant's, Policers Officer's John Doe's, in there official and individual capacity under "color of law" for Punitive Damages in the amount of \$100,000.00 Thousand Dollars, for the Cruel and Unusual Punishment, of diliberte indiffenabces and malice acts and illegal arrest and detention and force imprisonment and for filing bogus charges and alleged crime of Drug sale, in violation of the Plaintiff's United States Constitutional Rights, under 4th. 5th. 6th. 8th. and 14th. Amendment. U.S.Const.

WHEREFORE, Plaintiff's respectfully prays that this Court grant the Plaintiff's relief and any other further relief, which this Court may deems just and proper.

Dated: June , 2013
G.M.D.C. 15-15 Hazen St.
East Elmhurst, N.Y. 11370

CC:

I declear under penalty of perjury that the foregoing is true and correct:

Respectfully Submitted,


Michael Robinson, 241-12-07969
G.M.D.C. (C-73) 15-15 Hazen St.
East Elmhurst, New York. 11370

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ____ No ____ Do Not Know ____

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ____ No ____ Do Not Know ____

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ____ No ____

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ____ No ____

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

1. Which claim(s) in this complaint did you grieve? _____

2. What was the result, if any? _____

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: _____

2. If you did not file a grievance but informed any officials of your claim, state who you informed, _____

when and how, and their response, if any: _____

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. _____

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). Plaintiff Michael Robinson, will sue the City of New York Employees, agents and Defendant's New York Police Officers of New York City Police Department. John Doe, in his or her official and individure capacity, for deliberate indifference, malice and cruel and unusual punishment, for force imprisonment and illegal detention, warrantless arrest, without probable cause, for the bogus alleged Drug Sale of controlled substance, by the hands of agents of City of New York City police Department, plaintiff's will sue in the amount of Two Million Dollars, Compensatory Damage, to compensate Plaintiff's for his suffering, extreme emotional distress disorder, truma and als trumatization, and for punitive Damage in the amount of \$100,000.00 thousand Dollars, for cruel and unusual punishment, of deliberate indifference and malice Acts, and ilegal force imprisonment and Detention and for filing bogus charges and alleged Drug sale of controlled substance.

VI. Previous lawsuits:

On
these
claims

A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes _____ No ☒

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes _____ No ☒

On
other
claims

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 5 day of June, 2013.

Signature of Plaintiff

Michael Robinson

Inmate Number

241-12-07969

Institution Address

G.M.D.C. 15-15 Hazen St.
East Elmhurst, N.Y. 11370

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 5 day of June, 2013 I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Michael Robinson

Michael Robinson, 241-12-07969
G.M.D.C. (C-73) 15-15 Hazen St.
East Elmhurst, New York. 11370